DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

Index as:

Confidential Informants

CONFIDENTIAL INFORMANTS

I. POLICY:

The Department encourages development and use of informants. The proper legal use of an informant can greatly assist the efforts of the officer in obtaining vital information that may be used in any investigation.

II. PURPOSE:

The purpose of this Order is to set forth procedures to help members of the Department develop and effectively use informants and the information obtained.

III. PROCEDURE:

A. Definitions:

1. By definition, an informant is a person who provides information. A citizen giving an officer information about neighborhood activities is an informant. An arrested person who provides information about other participants in a crime is an informant. An informant can be one who is paid money from an officer to provide information about who committed a particular crime.

An officer shall develop a variety of information, sources or informants. In many cases, information will flow as a result of friendly, courteous conversations and questioning, by building rapport, by providing efficient law enforcement response and by listening and talking.

2. For purposes of this Order, a confidential informant (CI) is defined as someone who provides useful information or intelligence concerning criminal activity (including, but not limited to vice and organized crime) and who expects some kind of return. Return is defined as payment in money, or assistance from the County Attorney or the Courts, or the satisfaction of a personal need to contribute to the improvement of the neighborhood.

3. **Entrapment:** Occurs when a commissioned employee or a person acting in cooperation with the commissioned employee (informant), for the purposes of obtaining evidence of the commission of an offense, solicits, encourages or otherwise induces another person to engage in criminal conduct when he/she was not ready and willing to engage in such conduct.

B. Identity of Informants:

Each officer who wishes to develop and use an informant, as defined above, will prepare a confidential file envelope on the informant as follows:

1. On the front of an envelope, place the following information:

a. Officer's name and DSN;

b. Informant's number – This will consist of the officer's DSN followed by an alphabetic letter, A for first informant, B for the next, C for the third, etc. If the informant is a juvenile, write the word "Juvenile" after the letter.

2. Prepare or collect the following and place inside the envelope:

a. Biographical and background information: name, aliases, address, telephone numbers, known acquaintances, habits, etc.

b. Criminal history record, when applicable.

c. Information the informant has or can be expected to provide.

d. Record of any payments made to the informant by the Department.

e. Degree of involvement of informants in any operation.

3. Seal the envelope and give it personally to the Chief of Police. The envelope will then be stored in a locked file cabinet in the Bureau of Investigations (BOI) Commander's Office. The BOI Commander will develop and maintain a master informant file and indexing system. This will be the only informant file.

4. Once an informant file has been prepared, all future references to the informant in any reports will be by informant number only. Informant names will not be used.

5. To further protect the identity of confidential informants, officers are prohibited from discussing any information pertaining to any confidential informants in any type of public setting with regards to the confidential informant's name, personal information, or any other pertinent information regarding the informant.

6. Once the informant file has been prepared, the officer is responsible for keeping the file up-to-date. The officer simply requests the numbered file from the BOI Commander and places the additional information within and returns it. This should be done in the presence of the BOI Commander or his/her designee.

7. Two or more officers may develop the same person as an informant. Each officer will develop a separate informant file and assign an informant number.

8. Informant files can be retained indefinitely, but officers are encouraged to keep only active informants on file. Consideration should be given to purging of non-active informant files every three (3) years.

9. The only personnel who will have access to the confidential informant files will be the BOI Commander and the Chief of Police. All other access shall be granted only by the Chief of Police.

10. Special care should be utilized in dealing with confidential informants. Many times, these individuals have previous criminal history which permits them the ability to serve as a confidential informant. Detectives and police officers should use caution when dealing with these individuals, both for reliability, as well as personal safety. Anytime a CI is debriefed or met in person, for the safety of the officer, the CI will be searched prior to debriefing or being brought into a secure area of the Police Department. Officers will not meet with confidential informants alone; a secondary officer(s) will be present for security and liability concerns. Confidential informants should always be considered a potential threat and never be trusted with any sensitive information. Confidential informants should be handled with the utmost caution at all times.

C. Use of Police Informants:

1. Police officers will not make any deals with people concerning charging, pleading or sentencing. Officers may, however, consult with the City Prosecuting Attorney or St. Louis County Prosecuting Attorney's Office regarding these matters.

2. Informant information may become the basis for a variety of legal and law enforcement processes. The officer should carefully consider the possibilities of being required to identify an informant in the courtroom, possibly placing the informant in jeopardy.

3. Informants as participants in offenses must be willing to testify in court.

4. Officers shall deal with informants very carefully and with circumspection, particularly those of the opposite sex. Officers are prohibited from establishing a personal relationship with an informant that goes beyond their official duties.

5. Each time an informant is utilized, an entry into a log will be completed by the BOI Commander with the following information and included in a quarterly report to the Chief of Police:

a. Police report number or event number (if applicable);

b. Date the informant was used;

c. Type of service the informant provided (C.I. buy, undercover introduction, general intelligence information, etc.)

6. Payments to informants will be authorized by the Chief of Police, after a memorandum has been prepared requesting such funding and forwarded through the chain of command. Informant payments will be from the City's petty cash fund maintained by the Finance Department.

a. Fees paid to informants are based on the quality and quantity of information. Fees paid to informants shall be a cash-on-delivery basis after the information is received. The informant will sign a receipt with their name or code number, and the receipt will be placed in the informants file.

b. Any and all payments to confidential informants will be included in the quarterly reports from the BOI Commander.

7. Every six (6) months after the creation of the informant file, the BOI Commander shall be required to review the informant file and update it with an additional criminal history record, current address(es), phone number(s), new vehicle(s), current associate(s), etc. Any obsolete or outdated information should be removed from the files and destroyed. Informant files which are not updated every six (6) months shall be considered inactive.

8. The use of juvenile informants is **NOT** authorized without **PRIOR** approval of the Chief of Police or his/her designee. Juvenile informants should only be used for criminal intelligence that seriously affects individual or public safety or in those instances when it is necessary to clear a crime that has already occurred.

a. If a juvenile informant is used without the direct approval of the Chief of Police, the BOI Commander shall notify the Chief of Police within 24 hours.

b. In the rare case of utilizing a juvenile as a confidential informant, providing safeguards for the juvenile confidential informant is of utmost importance. Prior to the use of a juvenile as a confidential informant, his/her parent must be completely aware and give legal permission for their child to participate with this law enforcement agency.

c. Juvenile confidential informants will never be left alone and will always be under surveillance during any investigation or operation.

9. Specific guidelines exist through case law regarding the legal use of informants. The following points are offered to help officers judge the usefulness of their informants.

a. If possible, corroborate informant tips through independent investigation.

b. If informant tips form probable cause to arrest or search, the officer involved must be prepared to justify to the Court why the informant is credible and why his/her information is reliable.

10. The supervisor and all officers involved with utilizing a confidential informant will do everything possible to ensure the safety of the informant. This includes ensuring the informant's physical safety if utilized during an investigation, and the safety of the informant's identity prior, during or after their participation with any Olivette Police Department undercover investigation.

a. The commissioned employee utilizing the informant shall discuss each of the following provisions with the informant PRIOR to utilizing him/her in any operation:

i. Informants are not law enforcement officers. They have no arrest powers, are not permitted to conduct searches and/or seizures and may not carry a weapon.

ii. Informants will be arrested if found to be participating in any illegal activity.

iii. Informants are not to take any action, and the Olivette Police Department will not condone any action that may be considered entrapment.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
Effective Date: 06/11/2009
Revised: 9/24/2010
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